IN THE
COURT OF APPEALS OF INDIANA
No. 20A-PC-686

ERIC SKEENS,
Appellant-Petitioner,

v.

STATE OF INDIANA,
Appellee-Plaintiff.

Appeal from the
Huntington Circuit Court,

No. 35C01-1101-PC-4,

The Honorable Davin G. Smith,
Judge.

BRIEF OF APPELLEE

CURTIS T. HILL, JR.
ATTORNEY GENERAL OF INDIANA
Attorney No. 13999-20

JUSTIN F. ROEBEL
Supervising Deputy Attorney General
Attorney No. 23725-49

OFFICE OF THE ATTORNEY GENERAL
Indiana Government Center South
302 West Washington Street, Fifth Floor
Indianapolis, Indiana 46204-2770
Telephone: (317) 232-7635
Justin.Roebel@atg.in.gov

Attorneys for Appellee

Table of Contents

STATEMENT OF THE ISSUES 4
STATEMENT OF THE CASE 4
Nature of the Case 4
Course of Proceedings 4
STATEMENT OF FACTS 4
Petitioner was convicted of five counts of child molestation. 4
ARGUMENT 5
Standard of Review 5
I. Petitioner cannot bring a freestanding claim of prosecutorial misconduct or denial of due process based on previously available evidence. 5
III. Petitioner is not entitled to PCR relief on his claims of ineffective assistance of appellate counsel. 5
CONCLUSION 6

Table of Authorities

Cases

Ben-Yisrayl v. State, 738 N.E.2d 253 (Ind. 2000) 5
Dewitt v. State, 755 N.E.2d 167 (Ind. 2001) 5
Hampton v. State, 961 N.E.2d 480 (Ind. 2012) 5
Massey v. State, 955 N.E.2d 247 (Ind. Ct. App. 2011) 5
McCary v. State, 761 N.E.2d 389 (Ind. 2002) 5
Rhoiney v. State, 940 N.E.2d 841 (Ind. Ct. App. 2010), *trans. denied* 5
Skeens v. State, No. 35A05-0909-CR-515 (Ind. Ct. App. Aug. 25, 2010) 4
Stevens v. State, 770 N.E.2d 739 (Ind. 2002) 5

Other Authorities

Ind. Appellate Rule 46(A)(8) 5
Ind. Post-Conviction Rule 1(1) 5
Ind. Post-Conviction Rule 1(5) 5

STATEMENT OF THE ISSUES

I. Whether Petitioner can raise freestanding claims which were not raised in his PCR Petition.

II. Whether the PCR court properly denied Petitioner's ineffective assistance of trial counsel claims.

III. Whether the PCR court properly denied Petitioner's ineffective assistance of appellate counsel claims.

STATEMENT OF THE CASE

Nature of the Case

Petitioner Eric Skeens appeals from the denial of post-conviction relief.

Course of Proceedings

In July of 2009, Petitioner was found guilty by a jury of four counts of Class A felony child molesting and one count of Class C felony child molesting (DA App. 6-7). On August 21, 2009, Petitioner received consecutive sentences of 45 years on each Class A felony conviction and seven years for the Class C felony conviction (DA App. 301-02). Petitioner's convictions were affirmed on direct appeal, but his sentence was found to be inappropriate. *Skeens v. State*, No. 35A05-0909-CR-515, slip op. at 27-28 (Ind. Ct. App. Aug. 25, 2010). This Court remanded with instructions that the trial court impose a sentence of 90 years. *Id.* The Indiana Supreme Court denied Petitioner's request for further review on transfer (DA Docket).

STATEMENT OF FACTS

Petitioner was convicted of five counts of child molestation.

Petitioner was found guilty by a jury of four counts of Class A felony child molesting and one count of Class C felony child molesting (DA App. 6-7). The circumstances of his offenses were described by this Court in his direct appeal:

> K.W. was born to R.W. ("Mother") in April 2000. Skeens, who was born on June 22, 1980, met Mother in 2003 and married Mother in December 2004.

ARGUMENT

Standard of Review

Petitioners who have exhausted the direct appeal process may challenge the correctness of their convictions and sentences by filing a PCR petition. Ind. Post-Conviction Rule 1(1). The petitioner bears the burden of establishing his grounds for post-conviction relief by a preponderance of the evidence. *See* Ind. Post Conviction Rule 1(5); *Hampton v. State*, 961 N.E.2d 480, 491 (Ind. 2012); *Ben-Yisrayl v. State*, 738 N.E.2d 253, 258 (Ind. 2000). A petitioner who has been denied post-conviction relief faces a "rigorous standard of review" on appeal. *Dewitt v. State*, 755 N.E.2d 167, 170 (Ind. 2001); *see also Massey v. State*, 955 N.E.2d 247, 253 (Ind. Ct. App. 2011). The PCR court's denial of relief will be affirmed unless the petitioner shows that the evidence leads "unerringly and unmistakably to a decision opposite that reached by the post-conviction court." *McCary v. State*, 761 N.E.2d 389, 391 (Ind. 2002); *Rhoiney v. State*, 940 N.E.2d 841, 844 (Ind. Ct. App. 2010), *trans. denied*. Appellate courts do not defer to the PCR court's legal conclusions, but do accept its factual findings unless they are clearly erroneous. *Stevens v. State*, 770 N.E.2d 739, 746 (Ind. 2002).

I. Petitioner cannot bring a freestanding claim of prosecutorial misconduct or denial of due process based on previously available evidence.

Petitioner's first issue—a freestanding claim of prosecutorial misconduct and a denial of due process based on false testimony by Officer Hunnicutt at the discovery hearing—cannot be raised in this PCR proceeding because it is based on evidence that was available at trial.

III. Petitioner is not entitled to PCR relief on his claims of ineffective assistance of appellate counsel.

Petitioner has failed to raise valid appellate claims. *See* Ind. Appellate Rule 46(A)(8)(a), (b) (requiring appellants to support their arguments with cogent reasoning, citations to relevant authority, and the applicable standard of review).

Because Petitioner has not shown this finding to be clearly erroneous, this Court should affirm that decision.

CONCLUSION

For the foregoing reasons, the State respectfully urges that the PCR court be affirmed.

Respectfully submitted,
CURTIS T. HILL, JR.
Attorney General of Indiana
Attorney No. 13999-20
/s/ Justin F. Roebel
Justin F. Roebel
Supervising Deputy Attorney General
Attorney No. 23725-49
Attorneys for Appellee

Certificate of Word Count

I verify that this brief contains no more than 14,000 words. This brief contains 12,062 words. The word count was conducted by selecting all portions of the brief not excluded by Indiana Appellate Rule 44(C) and selecting Review/Word Count in Microsoft Word, the word-processing program used to prepare this brief.

/s/ Justin F. Roebel
Justin F. Roebel
Supervising Deputy Attorney General

Certificate of Service

I certify that on September 9, 2020, I electronically filed the foregoing document using the Indiana E-Filing System (IEFS). I also certify that on September 9, 2020, the foregoing document was served upon opposing counsel via IEFS, addressed as follows:

Cynthia M. Carter
attorneycarter@cynthiamcarterlaw.com

/s/ Justin F. Roebel
Justin F. Roebel
Supervising Deputy Attorney General